modified his sentence. Gill would no longer need to go to prison, but would remain on probation (an alternative to serving a sentence of imprisonment) upon entering a bond for Rs 20,000 and complying with a creative set of conditions – that he 'be of good behaviour' and appear in court when called upon for a period of three years; that he lead an 'honest and industrious life'; that he abstain from consuming alcohol in public places and at parties; that he remain under the supervision of, and periodically visit, the Delhi chief probation officer for three years; and that he deposit Rs 2,00,000 as compensation to Bajaj and Rs 50,000 towards costs of the legal proceedings.[36]

The sessions judge offered robust reasons for rejecting the arguments presented on behalf of Gill. It was argued that the Bajajs went after Gill driven by political vendetta because Gill had refused to intervene in a CBI inquiry against Mr Bajaj. The sessions judge observed that this argument was entirely unsubstantiated. In response to Gill's argument that her account was unladylike – because any self-respecting lady would have approached her husband in the first instance, before approaching her host Kapur and fellow guest Pathak – the sessions judge held that Mrs Bajaj was an experienced administrator in her own right, and was capable of 'handling this kind of situation independently of her husband'.[37] The judge, however, offered an inexplicable reason for modifying the sentence – that Bajaj was initially content with an apology, but that her 'attitude hardened' with time.[38] Bajaj was in fact always clear that an apology was an unsatisfactory remedy. None of the evidence on the record suggested otherwise.

The sessions judge's decision garnered far less interest in the media and the public response on this occasion was muted.[39] Gill appealed the sessions judge's decision despite the modification of his sentence. And so Gill and Bajaj found themselves in the Punjab and Haryana High Court for the third time. Justice Bajaj had long retired, and this appeal would be decided by Justice R.L. Anand. On 20 August 1998, the high court also confirmed the conviction of Gill, but further modified the conditions imposed by the sessions judge. The court dropped the conditions that Gill should lead an